

25VECV05793 25VECV05793

County: los-angeles

Division: Civil Law and Motion

Department: T

Hearing date: 2026-06-29

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25VECV05793 ROCHE V BERNAL

[TENTATIVE] ORDER: Defendant Juan C. Bernal's Demurrer to the Complaint is OVERRULED. Defendant Juan C. Bernal is ORDERED to file an Answer to the Complaint within 20 days.

Introduction

Defendant Juan C. Bernal (Defendant) demurred to Plaintiffs Richard Roche and Hayley Welsh's (collectively, Plaintiffs) Complaint. Defendant's demurrer placed into issue all fourteen causes of action (COA): Breach of Contract; Breach of Implied Warranty of Habitability; Conversion; Illegal Eviction; Retaliatory conduct; Invasion of Privacy; Malicious Prosecution/Abuse of Process; Constructive Eviction; Intentional Infliction of Emotional Distress (IIED); Invasion of Civil Rights; Tenant Harassment; Property Damage; Assault; and Invasion of Privacy.

An opposition was due June 15, 2026, and none was filed.

Discussion

Defendant asserted that the facts underlying all the COAs are vague because the Complaint failed to allege when the claims were discovered and failed to attach the lease or allege the terms of the lease. Defendant asserted that the COAs based upon intentional conduct and fraud failed to plead specific facts to support the claims. Specific to the fraud COAs, Defendant asserted that there are no facts alleging how, when, where, to whom, and by what means the misrepresentations as to habitability were made. Defendant asserted that the fraud COAs failed to allege facts to plead justifiable reliance and damages. As to the habitability-based COAs, Defendant asserted that the claims failed to plead facts as to a substantial defect affecting habitability, notice, failure to repair within a reasonable time, and damages.

The action is based upon claims for habitability based on contract and statute, wrongful eviction, and intentional torts, including conversion, invasion of privacy, malicious prosecution/abuse of process, IIED, civil rights violations, harassment, and assault. Despite Defendant's contention otherwise, the Complaint does not allege a fraud COA. Plaintiffs alleged, in summary fashion, that the parties entered an oral lease for a bedroom and during the tenancy Defendant's conduct and/or the conduct of Defendant's agents disrupted the tenancy. Plaintiffs alleged that Defendant exercised improper self-help tactics, like lockouts from the house, unauthorized entry into Plaintiffs' rented bedroom, reduced/denied utilities, and failures in making repairs. Plaintiffs alleged that the habitability COAs are based upon Defendant's failure to provide a locking doorknob on the rented bedroom door; water damage and mold from the bathroom that leaked into Plaintiffs' closet. Plaintiffs further expressly alleged requests for repair were made and Defendant failed/refused to make repairs. The assault COA is supported by Plaintiffs' allegations that Defendant threatened Plaintiffs with a gun and also sent Defendant's agents to

threaten Plaintiffs when the agents banged on Plaintiffs' bedroom door, made death threats, and kicked the bedroom door so hard that it "shattered". Plaintiffs alleged that an underlying unlawful detainer action forms the basis of the malicious prosecution/abuse of process claim. Plaintiffs alleged that the invasion of privacy claims are grounded upon Defendant's installation of video cameras that were pointed at Plaintiffs' bedroom door. Further, Plaintiffs provided a detailed timeline to show a chronology of the events/transactions that form the basis of the COAs. (See Compl. Attachment A.)

Defendant's arguments regarding an inability to determine the claims alleged against them and/or a failure to plead sufficient facts to support the COAs is contradicted by a plain reading of the allegations in the Complaint and Attachment A to the Complaint. Plaintiffs sufficiently alleged facts to support the COAs. The Court disagrees with Defendant's arguments.

The Demurrer is OVERRULED.

IT IS SO ORDERED, CLERK TO GIVE NOTICE.